



STANDING ORDER NO. L&O/10/2022

GUIDELINES FOR REGULATION OF RALLIES/ PROCESSIONS IN DELHI

A. PERMISSION

- a. Application for grant of permission for all rallies/processions must be applied at least 10 days in advance in case a single district is involved and 15 days in advance in case multiple districts are involved, excluding the day of event.
- b. For a procession/rally confined to one district only, the concerned District shall examine the request and grant the permission for the same after obtaining views of Traffic & Special Branch. However, where more than one District is involved, the permission shall be granted by PHQ after obtaining comments of the concerned District DCP, Traffic and the Special Branch. Permission or rejection shall be decided taking into consideration any guidelines or rules in force, imposed by any statutory Authority such as Delhi Disaster Management Authority, Delhi Pollution Control Committee etc.
- c. DCP/Special Branch after contacting the organizer would furnish details like number of participants, nature of demand, leaders who are likely to participate, whether program would remain peaceful or otherwise, any past precedent, input from last procession, tentative time of ending the demonstration & its conduct and whether it is desirable to grant such permission.
- d. In case of a program pertaining to many districts, apart from the DCP/Special Branch, PHQ would also obtain NOC from the District concerned as well as from the DCP/Traffic and on receipt of NOC take final call on the permission.
- e. A list of 23 items has been included under the head of terms & conditions for the grant of permission to processions and rallies. These must invariably be given to the organizers along

with a copy of permission, if accorded against proper acknowledgement.

- f. If, however, the permission has to be rejected, the same must be conveyed to the organizer much before the date of the event so that he could inform the participants in time about the cancellation of permission/event.
- g. As far as possible, no new religious rallies/processions should be granted permission. Permission should be granted only to traditional processions and there also negotiations should be held to reduce the size/route of the procession as far as possible.
- h. In accordance with the directions of Hon'ble Supreme Court of India in Civil Appeal Nos. 862, 863, 864, of 2018 and W.P. (C) No. 1153 of 2017 and Standing Order No. L&O/48/2022, gathering of only up to 1000 persons would be allowed at Jantar Mantar. Any gathering of protestors/demonstration of more than 1000 persons would be allowed at venues like Ramlila Ground. The organizers may form a small group of 3 to 4 persons from gathering at Ramlila Ground who can be taken to Jantar Mantar or VVIP offices for submission of memorandum.
- i. Big gatherings of over 50000 should not be permitted at Ramlila Ground but should be offered other venues like Sant Nirnakari grounds, Burari as an alternative. If, however, the organizers select a park or an open area elsewhere in Delhi, the same can be examined on merits.

B. CHECK LIST

Following checklist containing complete sequence of action in handling such demonstrations/rallies must be meticulously followed by the concerned district:-

1. Application for demonstration/rally is received in the office of DCP.
2. Other sources of information i.e. reports of IB/Spl. Branch/newspapers etc. should be used to get more details. The social media platform i.e. Face book, Whatsapp, Twitter, Instagram & YouTube etc. may be used as additional source of information.

3. Contact with the organizer is established by ACP / SHO to find out more details, about the demonstration/rallies and report to DCP/District.
4. Permission/rejection with specific terms and conditions prescribed to be accorded to the applicant by the DCP/District. In case of rejection, reasons must be mentioned and it should be ensured that both permission and rejection is received by the organizers.
5. Elaborate police arrangements must be issued for each demonstration with complete details of deployment.
6. Actual force demanded and received for the arrangement be recorded.
7. Arrangement at the place of demonstration should include the following:-
 - a. Barricading.
 - b. Positioning of staff - At First Barricade, the staff shall be detailed without lathis and be equipped with only helmet and body protectors. Second Barricade should again be without lathis but should be equipped with body protectors, cane shields and helmets. However, Third Barricade should remain fully equipped with all riot control equipment, such as sticks, body protectors, helmets, cane shields and teargas component.
 - c. Display of banner indicating promulgation of Section 144 Cr.P.C, if any should be made.
 - d. Positioning of water cannons, teargas shell section and force equipped with lathis should be assigned under one officer each.
 - e. At least 2 videographers should remain present on either side of the demonstration to capture both demonstrators as well as police response/action.
 - f. Location of Ambulance should be kept at nearby of place of demonstration/PCR vans for shifting injured persons.
 - g. Loud hailers should be available.
 - h. Safe passage to the Ambulance Van must be ensured in case of medical emergency.
 - i. Vajra Vehicle must be placed strategically at the site of demonstration to disperse the crowd as per requirement.

- j. Organizer must be present in the procession/rally/demonstration till the complete dispersal.
 - k. Open body vehicle like Truck, Tractor, Bullock Cart, Horse Cart etc. should not be allowed.
 - l. Drivers of the buses should be briefed about the route to place of detention. It should be ensured that no important vital installation falls on the route. The driver should remain seated on the driving seat during the protest. The contact numbers of bus drivers should be kept with the officer in-charge at the place of demonstration.
8. Proper briefing of staff should be done before deployment and this should be included in the write up of police arrangements. The briefing shall also be recorded.
 9. Constant liaison with the leaders/organizers must continue when they reach the venue and address the gathering and control them.
 10. A liaison should be made with the organizers for parking of only as many vehicles as may be accommodated in a suitable parking space
 11. Message to Control Room should be sent on all the important activities of demonstrations/rally/processions etc. from time to time.
 12. Re-briefing of the staff should be done according to the situation and utmost restraint should be shown.
 13. Repeated use of PA system should be made by a responsible officer appealing/advising the leaders and demonstrators to remain peaceful and come forward for memorandum/deputation etc. or court arrest peacefully. Announcements should be video-graphed.
 14. If the protestors do not follow the appeal and turn violent, the assembly should be declared as unlawful on PA system & videography of the announcement should be done.
 15. Warning on PA system prior to use of any kind of force must be ensured and also videographed.
 16. Police action should to be taken on the specific orders of the SHO/ACP/DCP or the senior officer present at the spot. Force should be used only to the extent of causing dispersal of the unlawful assembly. Staff should be briefed in advance not to be vengeful in use of force.

17. Use of force should be done as per the drill to cause minimum injury to the protestors.
18. Logbook of Control Room should be properly maintained (briefing of Control Room staff).
19. Announcement should be made to take the injured to hospital for medical aid. Injured should be shifted to the hospital vehicle/ambulance etc. at the earliest.
20. The police personnel injured during the assault by demonstrators should be sent for medical opinion and treatment immediately.
21. In case of arrest/detention of MPs, MLAs, MLC, information should be given to Speaker (Lok Sabha), Chairman (Rajya Sabha) or Speaker Assembly, as the case may be by quickest means.
22. Special attention should be paid while dealing with women demonstrations. It must be ensured that only women police tackle them physically, if there is a need to do so.
23. Even after the demonstration is over, proper liaison with the leaders especially political leaders be ensured to maintain cordial relations.
24. Even after the demonstration is over, local staff should be kept deployed at the place of function until complete dispersal.
25. During registration of case-evidence regarding use of stones, lathis, dandas etc. to be videographed and taken into possession from the site.
26. Staff detailed at nearby hospital to be briefed in advance to ensure proper record of the injured and keep the hospital staff ready to ensure timely treatment.
27. Details of peaceful demonstration/detention u/s 65 D.P. Act should be mentioned in the Daily Diary.
28. In case MPs, Central Cabinet Ministers, State Ministers, Protectees and former PMs are leading the demonstrations, specific group may be detailed to ensure their personal safety in the event of any police action. Besides, a liaison should be kept with such leaders to control the mob.
29. In the event of any demonstration turning violent and force is resorted to in which people get injured, an incident report must be sent by DCP District addressed to Jt. C.P./concerned with a copy to PHQ who in turn may inform Principal Secretary (Home), Govt. of NCT, Joint Secretary (UT), MHA through proper channel for information of the Govt. without any loss of time, particularly when the Parliament is in session.

C. TERMS & CONDITIONS

The terms and conditions for taking out and handling any major rally/procession are enclosed herewith for taking necessary action in the matter.

D. SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No.309/2003 issued vide No.4062-4140/C&T/AC-IV/PHQ dated 31.01.2003.

E. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

25.5.2022

No. 26501-26650 / Record Branch/PHQ dated Delhi, the 25/5/2022,

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

TERMS AND CONDITIONS FOR TAKING OUTRALLIES/PROCESSIONS

The permission for taking out a procession/rally is subject to the following conditions.

1. The organizer shall also obtain a "No Objection Certificate" from the land owning agency with regard to holding rally/meeting etc.
2. The organizer shall carry the permission granted to them in original to be shown to a police officer on demand.
3. They will depute a person with whom the police can liaise for various purposes.
4. Organizers would make adequate arrangements for drinking water (by providing tankers) and First Aid/Medical Aid in consultation with the civic/local bodies at the site and also during the procession.
5. The Procession will proceed in an orderly manner along the sanctioned route keeping to the left and will not halt on the way or cause impediment to the normal flow of traffic.
6. The organizers shall allow cross traffic at intersection as prescribed by the police.
7. The organizer shall keep some volunteers at these crossing to help the police.
8. No procession would normally occupy more than one fourth of the width of the road. Traffic should be allowed to flow on the road in both directions during any procession. The organizers would keep adequate number of volunteers to help the police to keep flow of traffic. At road crossing, the processionists would stop to allow any cross traffic to be cleared before proceeding further. In case a road is not sufficiently broad, the local police should regulate the procession suitably.
9. No demonstration/rally/meeting etc. would be allowed on roads and road crossings. Except at places especially earmarked for such a purpose by the police authorities, meeting should be held on grounds or on footpaths only.

10. Organizers of processions will be responsible for ensuring that the route permitted to them by the police authorities is strictly followed.
11. No procession should take more than a maximum of four hours from start to finish. The tail of any procession shall reach the finishing point within four hours of start positively.
12. The participants in the procession will not carry any lathis, firearms, spears, swords and other articles likely to be used as a weapon of offence. Besides the carrying of imitation firearms, resembling stengun, SAF, Carbine or AK-47, pistol, rifle or any other firearm is also not allowed as it is likely to cause danger to human life or safety or disturbance of public tranquility or a riot. The participants may carry flags, banners, etc. on sticks purely for display purposes.
13. No participant shall make provocative speeches or use language calculated or likely to inflame passions of the crowd or incite them or promote enmity between different groups on ground of religion, race, place or birth, residence language etc. or act in any manner which is prejudicial to the maintenance of harmony between such groups or disturbs public tranquility.
14. The participants of the procession/rally shall comply with all lawful directions given to them by the Commissioner of Police, Delhi or any other Police officer on duty.
15. No participant shall act in a manner as to result in damage to public property, assault on Govt. servant, arson, etc.
16. No participant shall destroy, damage or defile any place of worship or any object held sacred by any class of persons with the intention of thereby insulting any religion or any class of persons.
17. No inflammatory slogans etc. would be raised within 200 meters of any place of religious worship, schools, Hospitals and other silence zones.
18. No shamiana etc. would be erected on any road for any function including public meetings.
19. No loudspeaker or public address system shall be used in the venue of the rally/procession without specific permission from the DCP in whose district the procession/rally is being taken

out. Loudspeakers shall be used only between 6 AM to 10 PM as provided in the Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (Protection) Act, 1986 and in compliance of Supreme Court orders. Loudspeaker should be equipped with a sound limiter to keep volume of the loudspeaker low so that noise level does not cross 55 decibel in day time and 45 in night hours in residential areas and 65 decibel in day time and 55 decibel in night time in commercial areas. In case of violation of rules regarding use of loudspeakers, action would be taken as per provisions of Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (protection) Act, 1986.

20. The licensee shall be responsible to keep his followers under control, failing which he will be prosecuted under the law.
21. No animal like horses, elephants, camels, etc. would be allowed in a rally/procession.
22. Crackers, firing by weapons, etc. is prohibited in any procession.
23. In the event of non-compliance of any of the above conditions/ restrictions, the procession / meeting/ gathering / religious procession / religious function shall be declared as unlawful and prosecution would be launched against the violators.